

Tej Ram Singh v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 28 September 2011 · Writ-C No. 56852 of 2011 · **Writ disposed at admission; liberty to Consumer Forum under clause 7.10.**

HEADNOTE

A Division Bench disposed of a writ at admission without interfering with a licensee's disconnection order, and recorded that the disposal would not affect the consumer's right to apply to the Consumer Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner's connection was disconnected for using electricity for agricultural purposes and for running a cold storage. An earlier writ (Writ-C No. 40165 of 2011) was disposed of on 26 July 2011 directing the licensee to consider his cause; the authority then passed an order on 17 August 2011. This petition challenged that order as illegal and dehors the U.P. Electricity Supply Code, 2005. Nobody appeared for the petitioner despite repeated calls; licensee's counsel was present.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

consumer-forum-alternate-remedy

HOLDING

A writ attacking a licensee's disconnection order as illegal and dehors the Supply Code may be disposed of at admission without a merits determination against the department; that disposal does not affect the consumer's right to apply to the Consumer Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 17 AUGUST 2011 ORDER DISCONNECTING SUPPLY FOR AGRICULTURAL AND COLD-STORAGE USE WAS ILLEGAL OR DEHORS THE U.P. ELECTRICITY SUPPLY CODE, 2005

Left open for the Consumer Redressal Forum under clause 7.10 ¶ 1